

# THE ANDHRA PRADESH STATE ROAD TRANSPORT CORPORATION (ABSORPTION OF EMPLOYEES INTO GOVERNMENT SERVICE) ACT, 2019

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State of Andhra Pradesh - Act

THE ANDHRA PRADESH STATE ROAD TRANSPORT CORPORATION (ABSORPTION OF EMPLOYEES INTO GOVERNMENT SERVICE) ACT, 2019

ANDHRA PRADESH

India

THE ANDHRA PRADESH STATE ROAD TRANSPORT CORPORATION (ABSORPTION OF EMPLOYEES INTO GOVERNMENT SERVICE) ACT, 2019

Act 36 of 2019

Published on 27 December 2019

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AN ACT TO ABSORB THE EMPLOYEES OF THE ANDHRA PRADESH STATE ROAD TRANSPORT CORPORATION INTO THE GOVERNMENT SERVICE AND TO PROVIDE FOR MATTERS CONNECTED THEREWITH AND INCIDENTAL THERETO.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Seventieth Year of the Republic of India, as follows:-

1.

Short title and Commencement -

(1)

This Act may be called the Andhra Pradesh State Road Transport Corporation (Absorption of Employees into Government Service) Act, 2019.

(2)

It shall come into force on such date as the Government may, by notification in the Andhra Pradesh Gazette, appoint:

2.

Definitions -

In this Act, unless the context otherwise requires,-

(a)

?APSRTC? means the Andhra Pradesh State Road Transport Corporation established under section 3 of The Road Transport Corporations Act, 1950(Act No.64 of 1950);

(b)

?Employees of APSRTC? means such regular employees borne on the rolls of the APSRTC working in the residuary State of Andhra Pradesh defined as per Section 4 read with Section 82 of the Andhra Pradesh Re-organization Act, 2014(Central Act No.6 of 2014), as on the date of the coming into force of this Act;

(c)

?Government? means the Government of Andhra Pradesh;

(d)

?Government Service? means services in any office or department of the Government;

(e)

?Notification? means, a notification published in the Andhra Pradesh Gazette.

3.

Absorption of APSRTC Employees -

Notwithstanding anything to the contrary contained in ?The Andhra Pradesh Prohibition of Absorption of Employees of State Government Public Sector Undertakings Into Public Service Act, 1997? (Act.No.14 of 1997), on and from the date of commencement of this Act, all the employees of the APSRTC shall stand absorbed into Government service into such department, as may be notified by the Government.

4.

Application of Rules -

Save as otherwise provided for by the government, by notification specifically applicable to the absorbed employees of APSRTC, all the rules made by or under any law for the time being in force applicable to the State Government employees shall be applicable to the employees of the APSRTC absorbed into government service by virtue of this Act.

5.

Regulation of Service Conditions -

It shall be competent for the Government to frame such rules to regulate the service conditions of the absorbed employees of APSRTC, and the same shall bind on the absorbed employees.

6.

Power to remove difficulties -

It any difficulty arises in giving effect to the provisions of this Act, the Government may make such order, by notification in the Andhra Pradesh Gazette for removing such difficulty.

7.

Power to override other laws -

The provisions of this Act shall have effect, notwithstanding anything inconsistent therewith contained in any other law for the time being in force.

8.

Power to make rules -

(1)

The Government shall have power to make such rules generally to carry out the provisions of this Act.

(2)

Every rule made under this Act, shall immediately after it is made, be laid before the Legislative Assembly of the State, if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following the Legislative Assembly agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified have effect only in such modified form or shall stand annulled, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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